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Unconstitutional or Preempted Limitation Recognized by [Saunders v. Farmers Ins. Exchange](#), W.D.Mo., Mar. 16, 2007



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Proposed Legislation

United States Code Annotated

Title 42. The Public Health and Welfare

Chapter 45. Fair Housing (Refs & Annos)

Subchapter I. Generally (Refs & Annos)

42 U.S.C.A. § 3604

§ 3604. Discrimination in the sale or rental of housing and other prohibited practices

Currentness

As made applicable by [section 3603](#) of this title and except as exempted by [sections 3603\(b\)](#) and [3607](#) of this title, it shall be unlawful--

- (a)** To refuse to sell or rent after the making of a bona fide offer, or to refuse to negotiate for the sale or rental of, or otherwise make unavailable or deny, a dwelling to any person because of race, color, religion, sex, familial status, or national origin.
- (b)** To discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection therewith, because of race, color, religion, sex, familial status, or national origin.
- (c)** To make, print, or publish, or cause to be made, printed, or published any notice, statement, or advertisement, with respect to the sale or rental of a dwelling that indicates any preference, limitation, or discrimination based on race, color, religion, sex, handicap, familial status, or national origin, or an intention to make any such preference, limitation, or discrimination.
- (d)** To represent to any person because of race, color, religion, sex, handicap, familial status, or national origin that any dwelling is not available for inspection, sale, or rental when such dwelling is in fact so available.

(e) For profit, to induce or attempt to induce any person to sell or rent any dwelling by representations regarding the entry or prospective entry into the neighborhood of a person or persons of a particular race, color, religion, sex, handicap, familial status, or national origin.

(f)(1) To discriminate in the sale or rental, or to otherwise make unavailable or deny, a dwelling to any buyer or renter because of a handicap of--

(A) that buyer or renter,¹

(B) a person residing in or intending to reside in that dwelling after it is so sold, rented, or made available; or

(C) any person associated with that buyer or renter.

(2) To discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection with such dwelling, because of a handicap of--

(A) that person; or

(B) a person residing in or intending to reside in that dwelling after it is so sold, rented, or made available; or

(C) any person associated with that person.

(3) For purposes of this subsection, discrimination includes--

(A) a refusal to permit, at the expense of the handicapped person, reasonable modifications of existing premises occupied or to be occupied by such person if such modifications may be necessary to afford such person full enjoyment of the premises except that, in the case of a rental, the landlord may where it is reasonable to do so condition permission for a modification

on the renter agreeing to restore the interior of the premises to the condition that existed before the modification, reasonable wear and tear excepted.²

(B) a refusal to make reasonable accommodations in rules, policies, practices, or services, when such accommodations may be necessary to afford such person equal opportunity to use and enjoy a dwelling; or

(C) in connection with the design and construction of covered multifamily dwellings for first occupancy after the date that is 30 months after September 13, 1988, a failure to design and construct those dwellings in such a manner that--

(i) the public use and common use portions of such dwellings are readily accessible to and usable by handicapped persons;

(ii) all the doors designed to allow passage into and within all premises within such dwellings are sufficiently wide to allow passage by handicapped persons in wheelchairs; and

(iii) all premises within such dwellings contain the following features of adaptive design:

(I) an accessible route into and through the dwelling;

(II) light switches, electrical outlets, thermostats, and other environmental controls in accessible locations;

(III) reinforcements in bathroom walls to allow later installation of grab bars; and

(IV) usable kitchens and bathrooms such that an individual in a wheelchair can maneuver about the space.

(4) Compliance with the appropriate requirements of the American National Standard for buildings and facilities providing accessibility and usability for physically handicapped people

(commonly cited as “ANSI A117.1”) suffices to satisfy the requirements of paragraph (3)(C) (iii).

(5)(A) If a State or unit of general local government has incorporated into its laws the requirements set forth in paragraph (3)(C), compliance with such laws shall be deemed to satisfy the requirements of that paragraph.

(B) A State or unit of general local government may review and approve newly constructed covered multifamily dwellings for the purpose of making determinations as to whether the design and construction requirements of paragraph (3)(C) are met.

(C) The Secretary shall encourage, but may not require, States and units of local government to include in their existing procedures for the review and approval of newly constructed covered multifamily dwellings, determinations as to whether the design and construction of such dwellings are consistent with paragraph (3)(C), and shall provide technical assistance to States and units of local government and other persons to implement the requirements of paragraph (3)(C).

(D) Nothing in this subchapter shall be construed to require the Secretary to review or approve the plans, designs or construction of all covered multifamily dwellings, to determine whether the design and construction of such dwellings are consistent with the requirements of paragraph 3(C).

(6)(A) Nothing in paragraph (5) shall be construed to affect the authority and responsibility of the Secretary or a State or local public agency certified pursuant to [section 3610\(f\)\(3\)](#) of this title to receive and process complaints or otherwise engage in enforcement activities under this subchapter.

(B) Determinations by a State or a unit of general local government under paragraphs (5)(A) and (B) shall not be conclusive in enforcement proceedings under this subchapter.

(7) As used in this subsection, the term “covered multifamily dwellings” means--

(A) buildings consisting of 4 or more units if such buildings have one or more elevators; and

(B) ground floor units in other buildings consisting of 4 or more units.

(8) Nothing in this subchapter shall be construed to invalidate or limit any law of a State or political subdivision of a State, or other jurisdiction in which this subchapter shall be effective, that requires dwellings to be designed and constructed in a manner that affords handicapped persons greater access than is required by this subchapter.

(9) Nothing in this subsection requires that a dwelling be made available to an individual whose tenancy would constitute a direct threat to the health or safety of other individuals or whose tenancy would result in substantial physical damage to the property of others.

CREDIT(S)

(Pub.L. 90-284, Title VIII, § 804, Apr. 11, 1968, 82 Stat. 83; Pub.L. 93-383, Title VIII, § 808(b)(1), Aug. 22, 1974, 88 Stat. 729; Pub.L. 100-430, §§ 6(a)-(b)(2), (e), 15, Sept. 13, 1988, 102 Stat. 1620, 1622, 1623, 1636.)

Notes of Decisions (1484)

O'CONNOR'S CROSS REFERENCES

See also Prop. Code §§301.021-301.025.

O'CONNOR'S ANNOTATIONS

Generally

Bank of Am. Corp. v. City of Miami, 581 U.S. 189, 201-03 (2017). See annotation under 42 U.S.C. §3605.

Texas Dept. of Hous. & Cmty. Affairs v. Inclusive Cmty. Project, Inc., 576 U.S. 519, 542 (2015). “[A] disparate-impact claim [brought under 42 U.S.C. §3604 or 3605] that relies on a statistical disparity must fail if the plaintiff cannot point to a defendant's policy or policies causing that disparity. A robust causality requirement ensures that ‘[r]acial imbalance ... does not, without more, establish a prima facie case of disparate impact’ and thus protects defendants from being held liable for racial disparities they did not create. *At 543*: Courts must therefore examine with care whether a plaintiff has made out a prima facie case of disparate impact and prompt resolution

of these cases is important. A plaintiff who fails to allege facts at the pleading stage or produce statistical evidence demonstrating a causal connection cannot make out a prima facie case of disparate impact.” See also *Ohio House, LLC v. City of Costa Mesa*, 135 F.4th 645, 667 (9th Cir.2025) (to establish prima facie disparate impact, P must present evidence of (1) existence of outwardly neutral policy; (2) a significant, adverse, and disproportionate effect on protected class; and (3) robust causality that shows that challenged policy caused disproportionate effect).

Ohio House, LLC v. City of Costa Mesa, 135 F.4th 645, 661-62 (9th Cir.2025). “Disparate treatment is synonymous with intentional discrimination. Thus, to prevail on this claim a plaintiff must establish that the defendant had a discriminatory *intent or motive*. There are multiple ways to prove such intent. [¶] First, a plaintiff may rely on the burden-shifting analysis [that] applies where the evidence of discrimination is indirect and the plaintiff is challenging as pretextual a facially neutral explanation for the challenged action. [¶] Second, a plaintiff may prove disparate treatment with direct or circumstantial evidence demonstrating that a discriminatory reason more likely than not motivated the defendant and that the defendant’s actions adversely affected the plaintiff in some way. The discriminatory purpose need not be the defendant’s sole purpose for taking the challenged action, but it must have been a motivating factor. Under this standard, we ... determine whether the plaintiff has created a triable issue of fact that the defendant’s actions were motivated by discriminatory intent. [¶] Finally, ... we have held that a plaintiff may prove disparate treatment through a facially discriminatory policy that on its face applies less favorably to a protected group. In this context, ... a disparate-treatment claim based on a facially discriminatory policy does not depend on why the defendant discriminates but rather on the explicit terms of the discrimination. We adopted the following burden-shifting framework: The plaintiff has the initial burden to make a prima facie showing that a protected group has been subjected to explicitly differential--i.e., discriminatory--treatment, and then the burden shifts to the defendant to show either: (1) that the challenged restriction benefits the protected class or (2) that it responds to legitimate safety concerns raised by the individuals affected, rather than being based on stereotypes.” (Internal quotes omitted.)

Saint-Jean v. Emigrant Mortg. Co., 129 F.4th 124, 139-40 (2d Cir.2025). “Courts have held that ‘redlining’ violates the FHA. Redlining is the practice of denying the extension of credit to specific geographic areas due to the income, race, or ethnicity of its residents. [¶] Courts have also recognized ‘reverse redlining’ claims under the FHA. Reverse redlining is the practice of *extending* credit on unfair terms because of the plaintiff’s race and geographic area. In reverse redlining cases, lenders engage in predatory lending practices, including imposing exorbitant interest rates, lending based on the value of the asset securing the loan rather than a borrower’s ability to repay, repeated foreclosures, and loan servicing procedures in which excessive fees are charged in certain neighborhoods. [¶] Reverse redlining is a product of redlining, because the latter creates a credit-vacuum filled by predatory lenders who know that borrowers in historically redlined areas are a captive market with no access to reasonably-priced credit. Instead of *not* making loans, as in a

traditional redlining case, a lender engages in reverse redlining when it *makes* loans in a community based on race and does so in an unfair and predatory way. [¶] [W]e hold that where a defendant lender engages in unfair or predatory lending practices targeting borrowers based on race, or where those lending practices have a disparate impact based on race, this is reverse redlining in violation of the FHA." (Internal quotes omitted.) *See also Simms v. First Gibraltar Bank*, 83 F.3d 1546, 1559 (5th Cir.1996) (FHA prohibits lending institution from using race or another prohibited factor as basis for making lending decision).

Francis v. Kings Park Manor, Inc., 992 F.3d 67, 70 (2d Cir.2021). "The principal question presented ... is the following: Does a plaintiff state a claim under the [FHA] for intentional discrimination by alleging that his landlord failed to respond to reports of race-based harassment by a fellow tenant? On the record before us, we answer this question in the negative. [W]e think landlords typically do not, and therefore cannot be presumed to, exercise the degree of control over tenants that would be necessary to impose liability under the FHA for tenant-on-tenant harassment. *At 75*: We assume, for purposes of this appeal, that deliberate indifference may be used to establish liability under the FHA when a plaintiff plausibly alleges that the defendant exercised substantial control over the context in which the harassment occurs and over the harasser."

NAACP v. American Family Mut. Ins., 978 F.2d 287, 301 (7th Cir.1992). "Section 3604 applies to discriminatory denials of insurance, and discriminatory pricing, that effectively preclude ownership of housing because of the race of the applicant."

Congressional Authority

Groome Res. Ltd. v. Parish of Jefferson, 234 F.3d 192, 202 (5th Cir.2000). "The question before this court is whether the activity of regulating discrimination against the disabled in the purchase, sale, or rental of housing can be shown to substantially affect interstate commerce, and therefore be upheld as a legitimate exercise of congressional authority. *At 205-06*: [T]o figure out whether an activity substantially affects interstate commerce, ... we must ask ... whether the regulated activity is an activity economic in nature. [¶] The Parish argues that the activity being regulated is 'wholly non-economic' and presumably non-commercial. We disagree.... [¶] A denial of reasonable accommodations [under §3604(f)(3)(B)] affects a disabled individual's ability to buy, sell, or rent housing. It is an act of discrimination that directly interferes with a commercial transaction, and is an act that can be regulated to facilitate economic activity. *At 209*: [I]n the context of the strong tradition of civil rights enforced through the Commerce Clause--a tradition in which the [Fair Housing Amendments Act of 1988] firmly sits--we have long recognized the broadly defined 'economic' aspect of discrimination. ... As long as there is recognition of an interstate effect, discrimination, even local discrimination, can be regulated under Congress's commerce power."

U.S. v. Bob Lawrence Rlty., Inc., 474 F.2d 115, 120-21 (5th Cir.1973). “[D] argues that §3604(e) is unconstitutional [because] Congress does not have authority to enact the statute [and it] violates the 1st Amendment. [¶] This Court will give great deference ... to the congressional determination that §3604(e) will effectuate the purpose of the 13th Amendment by aiding in the elimination of the ‘badges and incidents of slavery in the United States.’ ... We find that the 13th Amendment empowers Congress to enact §3604(e). [¶] [D also] contends that §3604(e) constitutes an unconstitutional prior restraint by Congress on the right to free speech. [¶] Section 3604(e) regulates commercial activity, not speech. *At 122*: The only ‘speech’ proscribed by §3604(e) is commercial speech made to gain profit from racial representations. If §3604(e) were to reach a non-commercial statement, a political statement, or a purely informational statement, it would naturally be subject to 1st Amendment attack. However, it doesn’t, and so §3604(e) does not violate the 1st Amendment.”

Reasonable Accommodations

Women’s Elevated Sober Living L.L.C. v. City of Plano, 86 F.4th 1108, 1112-13 (5th Cir.2023). “To prove that an accommodation request is necessary, courts require that a plaintiff prove that the requested accommodation makes the home either ‘financially viable’ or ‘therapeutically meaningful.’ Some courts have determined that necessity must be considered (1) in light of the statutory provision’s language; (2) in accord with the purpose of the FHA and [Americans with Disabilities Act (ADA)], to ameliorate the plaintiff’s particular disability; and (3) in the light of ‘proposed alternatives.’ However, a requested accommodation that is preferable to an alternative is not sufficient; it must be essential. [¶] We must evaluate necessity considering its definition, that is, something ‘[i]ndispensable, requisite, essential, needful; that cannot be done without, or absolutely required.’ A requested accommodation from capacity restrictions must directly ameliorate the effect of the plaintiffs’ disabilities, such that the requested number *must* reside together in a dwelling to achieve effective amelioration of their afflictions. Put another way, without the requested accommodation, the ameliorative benefit provided must be so insignificant that it deprives persons with disabilities from the opportunity to use and enjoy the dwelling of their choice as compared to those without disabilities. This closely tracks with the standards devised by our sister circuits. [¶] [W]e hold that the district court improperly applied a standard accepting that proof of greater therapeutic benefit from residents’ disabilities was sufficient to establish that the requested accommodation was indispensable to their recovery from [substance use disorders], rather than requiring [Ps] to prove that the accommodation was indispensable or essential. [¶] We hold that the district court erred by applying a standard accepting that therapeutically beneficial treatment constitutes necessity under the FHA and ADA. ... A requested accommodation is necessary only if the plaintiff shows that without the requested accommodation, they will receive no ameliorative effect from their disability, thereby depriving them of the equal opportunity to enjoy the dwelling. To accept evidence that an accommodation would be better or provide a greater benefit to its residents with disabilities constitutes legal error.” *See also Howard v. HMK Holdings, LLC*, 988 F.3d 1185, 1191 (9th Cir.2021) (must be “causal link” between requested

accommodation and P's disability); *Vorchheimer v. Philadelphian Owners Ass'n*, 903 F.3d 100, 107-09 (3d Cir.2018) (FHA's necessity element requires that accommodation be essential, not just preferable; alternative reasonable accommodations must afford disabled person equal opportunity both to use and to enjoy her home).

Klossner v. IADU Table Mound MHP, LLC, 65 F.4th 349, 351 (8th Cir.2023). "This appeal concerns the scope of a landlord's duty under the [FHA] to make 'reasonable accommodations' for the 'handicap' of a tenant. The question is whether that duty extends to 'accommodating' a tenant's lack of income by accepting a government housing voucher that the landlord otherwise would not accept from a low-income tenant. We conclude that while the statute requires a landlord to make reasonable accommodations that directly ameliorate the handicap of a tenant, the obligation does not extend to alleviating a tenant's lack of money to pay rent. At 355: We do not conclude that preferential treatment for a handicapped tenant, in and of itself, takes a proposed accommodation outside the scope of what the [FHA] may require. [T]here is no dispute here that the [FHA] sometimes requires a landlord to provide preferential treatment: a disability-neutral rule on pets or parking spaces must yield when a tenant requires a service dog or proximity to an entrance. [¶] The issue here ... is whether the duty of reasonable accommodation goes further and extends to measures that would alleviate a disabled tenant's impoverished economic circumstances."

Howard v. HMK Holdings, LLC, 988 F.3d 1185, 1192 (9th Cir.2021). Tenant "argues that regardless of whether [landlord] is liable for discrimination under §3604(f)(3)(B), [landlord] is liable for failing to engage in an 'interactive process.' In effect, [tenant] asserts that the FHA imposes 'standalone' liability on a landlord when it fails to engage in an interactive process with a disabled tenant, even if the tenant cannot show that an accommodation was necessary. This is an issue of first impression in this court, and we hold that there is no 'standalone' liability under the FHA for a landlord's failure to engage in an 'interactive process' with a tenant. [¶] Discrimination includes 'a refusal to make reasonable accommodations in rules, policies, practices, or services, when such accommodations may be necessary to afford such person equal opportunity to use and enjoy a dwelling.' The text does not mention an 'interactive process.' Nor does the FHA mention an interactive process elsewhere. Neither do the relevant regulations. This is dispositive. The statute makes clear when liability attaches. ... The interactions between the tenant and landlord are, of course, relevant--reasonableness and 'accommodation' cannot be determined in a vacuum. But, at its heart, the FHA does not forbid a landlord from failing to engage with a tenant requesting an accommodation that has no basis in law or fact. Of course, a landlord acts in this regard at its own risk. But the statute prohibits failing to 'make reasonable accommodations,' not failing to 'interactively engage.'"

Bhogaita v. Altamonte Heights Condo. Ass'n, 765 F.3d 1277, 1285-86 (11th Cir.2014). "A successful failure-to-accommodate claim has four elements. To prevail, one must prove that (1) he is disabled within the meaning of the FHA, (2) he requested a reasonable accommodation,

(3) the requested accommodation was necessary to afford him an opportunity to use and enjoy his dwelling, and (4) the defendants refused to make the accommodation. [¶] The FHA does not demand that housing providers immediately grant all requests for accommodation. Once a provider knows of an individual's request for accommodation, the provider has an opportunity to make a final decision, which necessarily includes the ability to conduct a meaningful review to determine whether the FHA requires the requested accommodation. [¶] The failure to make a timely determination after meaningful review amounts to constructive denial of a requested accommodation, as an indeterminate delay has the same effect as an outright denial.” (Internal quotes omitted.) See also *Revock v. Cowpet Bay W. Condo. Ass'n*, 853 F.3d 96, 110-11 (3rd Cir.2017) (for housing provider's action to be considered “refusal,” provider must have had prior opportunity to accommodate).

Bryant Woods Inn, Inc. v. Howard Cty., 124 F.3d 597, 604 (4th Cir.1997). “In determining whether the reasonableness requirement has been met, a court may consider as factors the extent to which the accommodation would undermine the legitimate purposes and effects of existing zoning regulations and the benefits that the accommodation would provide to the handicapped. It may also consider whether alternatives exist to accomplish the benefits more efficiently. And in measuring the effects of an accommodation, the court may look not only to its functional and administrative aspects, but also to its costs. ... Thus, for example, even though a prohibition of pets in apartments is common, facially neutral, and indeed reasonable, the FHA requires a relaxation of it to accommodate a hearing dog for a deaf person because such an accommodation does not unduly burden or fundamentally alter the nature of the apartment complex.” See also *Vision Warriors Ch., Inc. v. Cherokee Cty. Bd. of Comm'rs*, ___ F.4th ___, 2024 WL 125969 (11th Cir.2024) (No. 22-10773; 1-11-24) (accommodation is not reasonable if it imposes undue financial and administrative burdens on grantee or requires fundamental alteration in nature of program).

Elderhaven, Inc. v. City of Lubbock, 98 F.3d 175, 178 (5th Cir.1996). “[W]e reject the suggestion of certain courts that [an FHA] defendant bears the burden of proof on the question of reasonableness. The text of the [FHA] provides no hint that Congress sought to change the normal rule that a plaintiff bears the burden of proving a violation of law by a preponderance of the evidence.”

Sex Discrimination

Fox v. Gaines, 4 F.4th 1293, 1293 (11th Cir.2021). “This case presents the question of whether sexual harassment claims are actionable under the [FHA]. At 1295: Whether sexual harassment qualifies as sex discrimination under the FHA is a question of first impression in our circuit. At 1296: The FHA makes it unlawful to ‘discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection therewith, because of ... sex.’ [¶] When interpreting the FHA, we ... look to cases interpreting Title VII, which uses language virtually identical to the FHA’s. [¶] Interpreting Title VII, the Supreme

Court ruled that ‘[w]ithout question’ sexual harassment is a form of sex discrimination within the meaning of Title VII’s nearly identical prohibition on ‘discriminat[ion] ... because of ... sex.’ *At 1297*: Thus, we hold that sexual harassment--both hostile housing environment and quid pro quo sexual harassment--is actionable under the FHA, provided the plaintiff demonstrates that she would not have been harassed but for her sex.”

Webb v. U.S. Veterans Initiative, 993 F.3d 970, 971 (D.C.Cir.2021). “[P] alleges that [D] discriminated against him because of his sex when it refused to offer him a one-bedroom apartment while offering one to a less-qualified female applicant. *At 972*: Echoing the district court and emphasizing the phrase ‘sell or rent,’ [D] argues that [P] is not an aggrieved person under the [FHA] because he paid no rent. [D] might have had a good case if the statute did not contain the phrase ‘otherwise make unavailable,’ but that language, following the phrase ‘to sell or rent,’ clearly demonstrates that the section encompasses conduct beyond simply refusing to sell or rent. *At 973*: [D also] argues that even if [P’s] factual allegations were adequate, his discrimination claim fails as a matter of law because he was never ‘deprived of a place to live.’ Section 3604, however, contains no textual limitation making an otherwise discriminatory housing practice lawful simply because the aggrieved person is not yet homeless. Rather, alleging that someone made ‘a dwelling’--whether or not the plaintiff’s current dwelling--unavailable based on a protected characteristic is sufficient. Put differently, nothing in the statute required [P] to be kicked out of his multiple-occupancy unit to sue [D] for refusing to offer him a one-bedroom unit on the basis of his sex.”

Curto v. A Country Place Condo. Ass’n, 921 F.3d 405, 410-11 (3d Cir.2019). “‘Where a regulation or policy facially discriminates on the basis of the protected trait, in certain circumstances it may constitute per se or explicit discrimination because the protected trait by definition plays a role in the decision-making process.’ [D] argues that its pool schedule is not discriminatory because it was not motivated by malice toward either sex. But ... a showing of malice is not required ‘where a plaintiff demonstrates that the challenged action involves disparate treatment through explicit facial discrimination.... Rather, the focus is on the explicit terms of the discrimination.’ [¶] Under the most recent version of the schedule, women are able to swim for only 3.5 hours after 5:00 p.m. on weeknights, compared to 16.5 hours for men. The schedule also assigns to men the entire period from 4:00 p.m. onward on Friday afternoons. Women with regular-hour jobs thus have little access to the pool during the work week, and the schedule appears to reflect particular assumptions about the roles of men and women. In light of these specific inequitable features, the schedule discriminates against women under the FHA even though it provides roughly equal aggregate swimming time to each gender.”

Unlawful Activity--§3604(a)

Inclusive Cmty. Project, Inc. v. Lincoln Prop. Co., 920 F.3d 890, 910-11 (5th Cir.2019). “[T]o state a claim for disparate treatment under §3604(a), the plaintiff must allege facts supporting a prima facie case of (1) membership in protected class, (2) that the plaintiff applied and was qualified

to rent or purchase housing; (3) that the plaintiff was rejected, and (4) that the housing thereafter remained open to similarly situated applicants after the plaintiff was rejected. If a prima facie case is alleged, a defendant may offer a legitimate, non-discriminatory reason for the rejection. The burden then shifts back to the plaintiff to rebut the reason offered by the defendant by showing it is a pretext for discrimination.”

Mississippi Rising Coalition v. City of Ocean Springs, 910 F.3d 191, 193-94 (5th Cir.2018). “[Ps’] allegations ... fail to establish statutory standing under the FHA. The only act they allege is the City’s resolution requiring the Mississippi state flag to be flown over public buildings. ... [Ps] do not allege that the City is refusing to sell or rent homes to African-Americans, or to any other racial group. Nor do they allege that the City has made housing ‘unavailable’ or ‘den[ie]d’ it to anyone. [Ps] may believe that flying the flag in question makes living in the City less desirable, but the complained-of action does not plausibly equate to making housing unavailable under [§3604(a)].”

Bloch v. Frischholz, 587 F.3d 771, 776 (7th Cir.2009). “The issue is whether [§3604(a)] prohibits any form of discrimination *after* the buyer or renter signs on the dotted line. [¶] Availability of housing is at the heart of §3604(a). ‘Section 3604(a) is designed to ensure that no one is denied the right to live where they choose for discriminatory reasons.’ There could be situations where a person is denied that right after he or she moves in. ... So we agree ... that §3604(a) may reach post-acquisition discriminatory conduct that makes a dwelling unavailable to the owner or tenant, somewhat like a constructive eviction[, which requires the tenant to surrender possession]. At 777: [D]espite the analogy to constructive eviction, nothing in §3604(a) suggests that ‘unavailability’ refers only to the physical condition of the premises. ... In other words, the defendant need not burn the plaintiff’s house down for the plaintiff to have an FHA claim. A defendant can engage in post-sale practices tantamount to ‘redlining’ that make a plaintiff’s dwelling ‘unavailable.’ At 778: Section 3604(a) concerns making a dwelling ‘unavailable,’ not constructive eviction *per se*. Still, [Ps] never moved out. ... Whether ‘unavailability’ means that a plaintiff must, in every case, vacate the premises to have a §3604(a) claim is an issue we refrain from reaching. [However,] §3604(a) does not contemplate attempted constructive eviction.” See also *Watters v. Homeowners’ Ass’n at Preserve at Bridgewater*, 48 F.4th 779, 786-87 (7th Cir.2022) (repeated use of racist language is quintessential example of interference that establishes pattern of harassment which can function as attempted constructive eviction even if homeowners remain at their property).

Unlawful Activity--§3604(b)

Morris v. West Hayden Estates First Addition Homeowners Ass’n, 104 F.4th 1128, 1146-47 (9th Cir.2024). “[Ps] contend ... that [D’s] toleration of threats and harassment targeted at [Ps] by other residents ... violated §3604(b).... [I]n appropriate circumstances, §3604(b) does forbid pervasive harassment linked to a protected category, here, religion. [¶] [T]he FHA’s protections extend to a tenant or homeowner’s ‘continuing rights, such as the privilege of quiet enjoyment of the dwelling.’ Liability under the FHA’s anti-discrimination provisions can therefore attach

to conduct that occurs both before and after the sale or rental of a home, including ‘a whole host of situations ... not amounting to constructive eviction.’ [¶] We ... hold that §3604(b) ... prohibits the creation of a hostile housing environment based on ‘race, color, religion, sex, familial status, or national origin.’ [¶] ‘We apply Title VII discrimination analysis in examining [FHA] discrimination claims.’ ... Adapting the Title VII framework to the Fair Housing context, a plaintiff may establish that he suffered a hostile housing environment by showing that he was subjected to (1) severe or pervasive harassment (2) that was based on a protected characteristic, ... and (3) that the defendant is responsible for the resulting hostile housing environment."

Georgia State Conf. of the NAACP v. City of LaGrange, 940 F.3d 627, 633 (11th Cir.2019). “[W]e must decide whether §3604(b) applies to the specific post-acquisition services at issue here: municipally provided electricity, gas, and water services. *At 634*: [W]e hold that a service within the meaning of §3604(b) must be a housing-related service that is directly connected to the sale or rental of a dwelling. [¶] The basic utility services at issue here--water, gas, and electricity--are distinct from other municipal services in two critical ways, both of which demonstrate their direct connection to the sale or rental of a dwelling: (1) they are services closely tied to the sale or rental of a dwelling, and (2) they are essential to the habitability of a dwelling. [T]hese two distinctions support our conclusion that the water, gas, and electricity services at issue here fall within the scope of §3604(b).” *See also Watts v. Joggers Run Prop. Owners Ass’n*, 133 F.4th 1032, 1042-43 (11th Cir.2025) (§3604(b) prohibits discrimination related to any additional privileges, services, and facilities afforded by agreement entered into as part of purchasing property; P’s allegations of discrimination were within scope of §3604(b) because contractual rights from mandatory HOA membership were directly connected to sale of home); *Cox v. City of Dallas*, 430 F.3d 734, 745 (5th Cir.2005) (§3604(b) not applicable to claims that city discriminated in enforcement of zoning laws to prevent unlawful dumping near Ps’ residences because service was not connected to sale or rental of a dwelling); *Jersey Heights Neighborhood Ass’n v. Glendening*, 174 F.3d 180, 193 (4th Cir.1999) (§3604(b) extends only to housing and housing-related services; it does not extend to every activity having an effect on neighborhood residents). *But see Committee Concerning Cmty. Imprv. v. City of Modesto*, 583 F.3d 690, 714-15 (9th Cir.2009) (§3604(b) applies to timely provision of law-enforcement personnel).

Unlawful Activity--§3604(c)

Gilead Cmty. Servs. v. Town of Cromwell, 112 F.4th 93, 98-99 (2d Cir.2024). “[D’s] arguments, which focus on the necessary causal link between a party’s protected identity or status and an FHA defendant’s conduct, simply do not map onto [§3604(c)]. That is because, by its plain text, [§3604(c)] is violated even absent any discriminatory transactions or conduct. To be liable, a defendant must simply ‘make, print, or publish, or cause to be made, printed, or published any notice, statement, or advertisement, with respect to the sale or rental of a dwelling that indicates any preference, limitation, or discrimination based on ... handicap,’ whether or not the defendant proceeds to carry out that discriminatory preference. The question under [§3604(c)], as this

Circuit has long held, is not what caused or motivated any conduct by a defendant but whether a defendant's statement 'suggests to an ordinary reader that a particular [protected status or identity] is preferred or dispreferred[.]'"

Morris v. West Hayden Estates First Addition Homeowners Ass'n, 104 F.4th 1128, 1148-49 (9th Cir.2024). "We ... adopt an objective 'ordinary reader' standard [for determining whether a statement violates §3604(c)]. Under this standard, a plaintiff need not present evidence that the defendant harbored a discriminatory purpose. Rather, a statement violates §3604(c) if 'an ordinary listener would believe that [it] suggests a preference, limitation, or discrimination based on a protected status.' Put simply, the 'touchstone' of a §3604(c) claim 'is ... the message.' [¶] Under this objective standard, evidence of a speaker or creator's intent may be relevant insofar as it illuminates the likely understanding of the message by viewers. But the scope of §3604(c) liability is defined by the statement's impact on the reader, viewer, or listener, not by the subjective motivations of the speaker. Nor is the speaker's stated intent dispositive. [¶] [S]tatements need not 'jump out at the reader with their offending message' to violate §3604(c).... For §3604(c) to have force, its prohibition must extend beyond facially discriminatory messages to 'expression[s] of a tacit preference not to provide housing to members of protected groups.' Discriminatory 'comments or actions may appear innocent or only mildly offensive to one who is not a member of the targeted group, but in reality be intolerably abusive or threatening when understood from the perspective of a plaintiff who is a member of the targeted group.' [¶] At the same time, the ordinary reader 'is neither the most suspicious nor the most insensitive of our citizenry' Merely mentioning one of the protected characteristics identified in §3604(c), without more, does not necessarily convey a 'preference, limitation, or discrimination' forbidden by the FHA, particularly if 'there are situations in which it is legitimate' to do so. The notice or statement at issue must be read 'in light of all the circumstances' to determine whether an ordinary reader under those circumstances would understand the statement to indicate a forbidden preference or limitation."

Unlawful Activity--§3604(f)

Gilead Cmty. Servs. v. Town of Cromwell, 112 F.4th 93, 99 (2d Cir.2024). "The binding precedent of our Circuit establishes that a plaintiff bringing a disparate treatment claim for discrimination under [§3604(f)] must show that a protected characteristic was one motivating factor causing the defendant's actions taken against the plaintiff."

Footnotes

1 So in original. The comma probably should be a semicolon.

2 So in original. The period probably should be a semicolon.

42 U.S.C.A. § 3604, 42 USCA § 3604

Current through P.L. 119-36. Some statute sections may be more current, see credits for details.

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